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As of: May 17, 2026 8:53 AM Z

Charles H. v. D.C.

United States District Court for the District of Columbia

April 9, 2021, Decided; April 9, 2021, Filed

Case: 1:21-cv-00997

Reporter
2021 U.S. Dist. LEXIS 252646 *; 2021 WL 6619327

CHARLES H. and ISRAEL F., on behalf of themselves and all others similarly situated, Plaintiffs, v. THE DISTRICT OF COLUMBIA, et. al., Defendants.

Subsequent History: Injunction granted at, Class certification granted by *Charles H. v. Dist. of Columbia, 2021 U.S. Dist. LEXIS 132383, 2021 WL 2946127 (D.D.C., June 16, 2021)*

Motion granted by, in part, Motion denied by, in part *Charles H. v. Dist. of Columbia, 2022 U.S. Dist. LEXIS 83065 (D.D.C., Feb. 16, 2022)*

Core Terms

pseudonyms, plaintiffs', seal, disabilities, anonymity, exhibits, weighs, disclosure, privacy interest, proceedings

Counsel: **[*1]** For District of Columbia, a municipal corporation, District of Columbia Public Schools, Office of the State Superintendent of Education, Defendants: Honey C. Morton, Richard P. Sobiecki, LEAD ATTORNEYS, Micah Ian Bluming, OFFICE OF THE ATTORNEY GENERAL FOR THE DISTRICT OF COLUMBIA, Washington, DC.

For United States of America, Interested Party: Ryan Wilson, LEAD ATTORNEY, CRT, Washington, DC.

For CHARLES H., on behalf of themselves and all others similarly situated, ISRAEL F., on behalf of themselves and all others similarly situated, Plaintiffs: Carolyn Smith Pravlik, Kathleen Lillian Millian, Zenia Sanchez Fuentes, Stephanie Ann Madison, LEAD ATTORNEYS, TERRIS PRAVLIK & MILLIAN LLP, Washington, DC; Margaret Hart, LEAD ATTORNEY, WASHINGTON LAWYERS' COMMITTEE FOR CIVIL RIGHTS, Washington, DC; Sarah L. Comeau, Ifetayo Belle, SCHOOL JUSTICE PROJECT, Washington, DC; Kaitlin Rose Banner, LEAD ATTORNEY, WASH.LAWYERS' CMTE FOR CIVIL RIGHTS & URB.AFFAIRS, Washington, DC.

Judges: BERYL A. HOWELL, Chief United States District Judge.

Opinion by: BERYL A. HOWELL

Opinion

MEMORANDUM AND ORDER

Plaintiffs have filed a motion to proceed under pseudonyms and to seal the unredacted exhibits supporting their motion to proceed under pseudonyms. **[*2]** Pls.' Mot. to Proceed Under Pseudonyms ("Pls.' Mot. Proceed Under Pseudonym"); Pls.' Mot to File Under Seal Exhibits to Their Motion to Proceed Under Pseudonyms ("Pls.' Mot. to Seal"). For the reasons set forth below, plaintiffs' motions are granted. Plaintiffs may proceed under pseudonyms, and the supporting exhibits, as well as plaintiffs' names and address, will be sealed, subject to any further consideration by the United States District Judge to whom this case is randomly assigned.[1]

I. BACKGROUND

Plaintiffs are an eighteen-year-old and a twenty-year-old high school student with disabilities and special education needs. Compl. ¶¶ 14-15. Each has an individualized education program ("IEP") under the

[1] *See* LCvR 40.7(f) (providing that the Chief Judge shall "hear and determine . . . motion[s] to seal the complaint, motion[s] to seal the address of the plaintiff, and motion[s] to file a pseudonymous complaint"); *see also* LCvR 5.1(h)(1) ("Absent statutory authority, no case or document may be sealed without an order from the Court.").

Individuals with Disabilities Education Act ("IDEA") and are therefore entitled to specialized educational instructing conforming with their IEPs. *Id.* ¶¶ 5, 14-15. They are also both detained in the District of Columbia's Central Detention Facility and the Correctional Treatment Facility ("DC Jail complex"). *Id.* ¶ 2. Plaintiffs were enrolled in an on-site school in the DC Jail complex before the COVID-19 pandemic and were in a specialized program for students with disabilities. *Id.* ¶ 48. At the outset of the COVID-19 pandemic, **[*3]** however, plaintiffs allege that defendants stopped providing them with classes and have failed to fulfill their obligations under the IDEA for over a year. *Id.* ¶ 3-4, 57-60. Plaintiffs have now filed this class action under, *inter alia*, the IDEA, 20 U.S.C. § 1400 et seq.; the Rehabilitation Act, 29 U.S.C. § 794(a); and the Americans with Disabilities Act, 42 U.S.C. § 12101, et seq. Compl. at 52-53.

II. LEGAL STANDARD

Generally, a complaint must state the names of the parties and address of the plaintiff. FED. R. CIV. P. 10(a) ("The title of the complaint must name all the parties."); LCVR 5.1(c)(1) ("The first filing by or on behalf of a party shall have in the caption the name and full residence address of the party," and "[f]ailure to provide the address information within 30 days of filing may result in the dismissal of the case against the defendant."); LCvR 11.1 (same requirement as LCvR 5.1(c)(1)). The Federal and Local Rules thus promote a "presumption in favor of disclosure [of litigants' identities], which stems from the 'general ***public interest*** in the openness of governmental processes,' . . . and, more specifically, from the tradition of open judicial proceedings." *In re Sealed Case, 931 F.3d 92, 96, 442 U.S. App. D.C. 330 (D.C. Cir. 2019)* (internal citations omitted) (quoting *Wash. Legal Found. v. U.S. Sentencing Comm'n, 89 F.3d 897, 899, 319 U.S. App. D.C. 256 (D.C. Cir. 1996)*). That "presumption of openness in judicial proceedings is a bedrock principle of our judicial system." *In re Sealed Case, 971 F.3d 324, 325, 449 U.S. App. D.C. 193 (D.C. Cir. 2020)* (citing *Courthouse News Serv. v. Planet, 947 F.3d 581, 589 (9th Cir. 2020)*). Accordingly, courts "generally **[*4]** require parties to a lawsuit to openly identify themselves to protect the public's legitimate interest in knowing all of the facts involved, including the identities of the parties." *Id.* (internal quotation marks and alterations omitted) (quoting *United States v. Microsoft Corp., 56 F.3d 1448, 1463, 312 U.S. App. D.C. 378 (D.C. Cir. 1995)* (per curiam)).

Despite the presumption in favor of disclosure, the Federal Rules of Civil Procedure describe circumstances in which filings may be redacted and where access to public filings may be limited. *FED. R. CIV. P. 5.2*. Minors, for example, must be referred to using only their initials. *FED. R. CIV. P. 5.2(a)(3)*. The court may also, for good cause, "require redaction of additional information." *Fed R. Civ. P. 5.2(e)(1)*.

Courts have also, in special circumstances, permitted a party to proceed anonymously. A party seeking to do so, however, "bears the weighty burden of both demonstrating a concrete need for such secrecy, and identifying the consequences that would likely befall it if forced to proceed in its own name." *In re Sealed Case, 971 F.3d at 326*. Once that showing has been made, "the court must then 'balance the litigant's legitimate interest in anonymity against countervailing interests in full disclosure.'" *Id.* (quoting *In re Sealed Case, 931 F.3d at 96*). When weighing those concerns, five factors, initially drawn from *James v. Jacobson, 6 F.3d 233, 238 (4th Cir. 1993)*, serve as "guideposts from which a court **[*5]** ought to begin its analysis." *In re Sealed Case, 931 F.3d at 97*. These five factors are:

> (1) whether the justification asserted by the requesting party is merely to avoid the annoyance and criticism that may attend any litigation or is to preserve privacy in a matter of [a] sensitive and highly personal nature; (2) whether identification poses a risk of retaliatory physical or mental harm to the requesting party or[,] even more critically, to innocent non-parties; (3) the ages of the persons whose privacy interests are sought to be protected; (4) whether the action is against a governmental or private party; and relatedly, (5) the risk of unfairness to the opposing party from allowing an action against it to proceed anonymously.

Id. (citing *James, 6 F.3d at 238*).

At the same time, a court must not simply "engage in a wooden exercise of ticking the five boxes." *Id.* Rather, the "balancing test is necessarily flexible and fact driven" and the five factors are "non-exhaustive." *In re Sealed Case, 971 F.3d at 326*. In exercising discretion "to grant the rare dispensation of anonymity . . . the court has 'a judicial duty to inquire into the circumstances of particular cases to determine whether the dispensation is warranted'. . . tak[ing] into account the risk of unfairness to **[*6]** the opposing party, as well

the customary and constitutionally-embedded presumption of openness in judicial proceedings." *Microsoft Corp., 56 F.3d at 1464* (quoting *James, 6 F.3d at 238* (other internal citations and quotation marks omitted)).

III. DISCUSSION

At this early stage of the litigation, this Court is persuaded that plaintiffs have met their burden of showing that their privacy interests outweigh the public's presumptive and substantial interest in knowing the details of this litigation. The public's interest in knowing the identities of the plaintiffs is *de minimis* compared to the significant privacy interests of plaintiffs, who seek to "maintain[] the privacy of their medical and educational information." Pls.' Mem. Supp. Mot. to Proceed Under Pseudonyms ("Pls.' Mem.") at 1.

First, as the description of plaintiffs' claim makes clear, plaintiffs do not seek to proceed under pseudonym "merely to avoid . . . annoyance and criticism," but to "preserve privacy in a matter of [a] sensitive and highly personal nature." *In re Sealed Case, 931 F.3d at 97*. The disabilities and medical histories of plaintiffs—including their status and individuals with disabilities—are paradigmatically "sensitive" and "highly personal." *See J.W. v. D.C., 318 F.R.D. 196, 202 (D.D.C. 2016)* (describing "overriding interest" in protecting **[*7]** disabled individual's identity and avoiding unnecessary publicity concerning his disability). The interest in anonymity is particularly great because of the risk that forcing disabled individuals to disclose deeply personal medical information could deter litigants from filing claims to vindicate their rights. *See Doe v. Sessions, Civil Action. No. 18-4 (RC), 2018 U.S. Dist. LEXIS 165829, 2018 WL 4637014, at *4 (D.D.C. Sept. 27, 2018)*. This factor weighs heavily in favor of plaintiffs.

Second, plaintiffs argue that they are at risk of retaliation from DC Jail staff and DCPS school personnel if they are forced to participate publicly in this litigation. Pls.' Mem. At 5. While it is the extent and nature of the threat is not described in detail, plaintiffs' assertion that staff might resent the "***systemic changes***" that plaintiffs' are advocating carries some weight. Though the threat of retaliation might not be nearly as great as in at least one of the cases plaintiffs cite, *see* Pls.' Mem. at 5 (characterizing *United States v. Doe, 655 F.2d 920, 922 n.1 (9th Cir. 1980)*, as "allowing pseudonym where plaintiff, a person who was incarcerated in a prison, feared disclosure of his status as a government informant"), this factor weighs in plaintiffs' favor

Third, "the ages of the persons whose privacy interests are sought to be protected," *In re Sealed Case, 931 F.3d at 97*, also weighs in favor of plaintiffs. **[*8]** While this factor usually serves to protect children, plaintiffs' relative youth in conjunction with their disabilities is sufficient for this factor to weigh in favor of anonymity. *See**M.F. on behalf of R.L. v. Magellan Healthcare Inc., No. 20-cv-3928, 2021 U.S. Dist. LEXIS 55761, 2021 WL 1121042, at *1 (N.D. Ill. Mar. 24, 2021)* (permitting plaintiff to proceed under pseudonym in a case involving "serious behavioral issues" where plaintiff, "[w]hile technically an adult, [was] still a teenager").

Fourth, the fact that this suit is against the government weighs in favor of denying plaintiffs' motion, but only very slightly. "[T]here is a heightened ***public interest*** when an individual or entity files a suit against the government." *In re Sealed Case, 971 F.3d at 329*. There is nothing about these proceedings, however, that creates any need for transparency with respect to plaintiffs' identities. *Cf. id.* (describing the ***public interest*** as "particularly great" where regulated entity sued government agency regarding "special exemptions" from statutory obligations). Here, plaintiffs seek to vindicate their own rights, and those of individuals similarly situated, and anonymity appears to be necessary to provide them the opportunity to vindicate those rights.

Fifth, allowing plaintiffs to proceed under **[*9]** pseudonym will not prejudice defendants in any way. Defendants already know plaintiffs' identities because plaintiffs are enrolled in the school system run by the District of Columbia Public Schools, are detained by the District of Columbia's Department of Corrections, and have filed administrative complaints related to the issues at the core of this litigation. Pls.' Mem. at 7. Allowing plaintiffs to proceed under pseudonyms will not compromise defendants' ability to defend this action and poses no "risk of unfairness to the opposing party." *Nat'l Ass'n of Waterfront Emp'rs v. Chao, 587 F. Supp. 2d 90, 99 (D.D.C. 2008)*.

In sum, weighed against the minimal apparent interest in disclosure, plaintiff's significant interest in maintaining her anonymity at this early stage in the litigation is more than sufficient to overcome any general presumption in favor of fully open proceedings. *See Horowitz v. Peace Corps, 428 F.3d 271, 278, 368 U.S. App. D.C. 192 (D.C. Cir. 2005)* ("If there is no ***public interest*** in the disclosure of certain information, 'something, even a

modest privacy interest, outweighs nothing every time.'" (quoting *Nat'l Ass'n of Retired Fed. Emps. v. Horner, 879 F.2d 873, 879, 279 U.S. App. D.C. 27 (D.C. Cir. 1989)*)).

Plaintiffs' motion to seal their supporting exhibits is not strictly necessary. Plaintiffs' names—and documents containing those names—would be sealed with the granting of the motion to proceed under pseudonyms, regardless **[*10]** of whether they filed an additional motion seeking to seal those documents. Plaintiffs' motion to seal is granted, since it makes essentially the same request as the motion to proceed under pseudonym and sealing plaintiffs' exhibits is needed to protect their identities.

IV. CONCLUSION AND ORDER

For the foregoing reasons, it is hereby

ORDERED that plaintiffs' Motion to Proceed Under Pseudonyms is **GRANTED**, subject to any further consideration by the United States District Judge to whom this case is randomly assigned, and the case may proceed using the pseudonyms Charles H. and Israel F. for plaintiffs; it is further

ORDERED that plaintiffs' Motion to File Under Seal Exhibits to their Motion to Proceed Under Pseudonyms is **GRANTED**, and plaintiffs may file under seal the unredacted declarations in support of their motion to proceed under pseudonyms and the exhibit disclosing their real names and addresses; it is further

ORDERED that those exhibits, including the real names and addresses of the plaintiffs, shall remain under seal until further order of the Court; and it is further

ORDERED that defendants are prohibited from publicly disclosing plaintiffs' identities or any personal identifying **[*11]** information that could lead to the identification of plaintiffs by nonparties, except for the purposes of investigating the allegations contained in the Complaint and for preparing an answer or other dispositive motion in response.

SO ORDERED.

Date: April 9, 2021

/s/ Beryl A. Howell

BERYL A. HOWELL

Chief Judge

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